QUICK SHEET · CONSTITUTION OF THE FEDERATED REPUBLIC

Immigration & Asylum

Two gates to residency, and a separate track for protection that opens the moment a claim is filed. Residency vests by law once both gates are cleared — neither executive can delay or deny it; the courts stay in every loop; and some doors are nailed shut — no ideological screening, no nationality quotas, no detention when removal can't be carried out.

Article VI · §6.1–§6.2, §6.3, §6.3.a

THE TWO-STAGE RESIDENCY SYSTEM — §6.1, §6.2

STAGE 1
State Sponsorship
A State sponsors under its own framework (or a federal one, if statute provides). It keeps discretion over whom — but sponsorship criteria may not violate §1.6 equality. A denial can be challenged only for §1.6 discrimination, and the court sets the remedy.

→

STAGE 2
Federal Certification
Federal categories set by statute. Denials must state the exact ground in writing and are judicially reviewable — including **in-camera review** of any national-security assessment.

→

ISSUANCE
Residency Vests
Clear both stages and legal residency vests **by operation of law**. Neither executive may delay, condition, or deny it — no executive discretion at the finish line.

→

REMOVAL
Federal Only
Only the federal government removes. Article I applies throughout, including habeas (§1.11); counsel is appointed at public expense if the person cannot afford it (§6.2). If removal can't be executed, the person stays at liberty.

THE SEPARATE ASYLUM TRACK — §6.3

Inhabitant from the date of filing
§1.20 · OWN CONSTITUTIONAL TRACK

Asylum bypasses the dual gate entirely — **no State can extinguish a claim** by refusing to sponsor. From filing, the claimant holds full Article I protection and social-state access; claims are decided **before any removal**. Manner of entry is irrelevant, and no penalty may attach to irregular entry while a claim is pending or granted. Claims are determined through an independent federal adjudicative process established by law, institutionally separate from immigration enforcement, removal, foreign affairs, intelligence, and national-security operations. Unaccompanied minors are Inhabitants from first contact, get a federal guardian within **72 hours**, and may never be held in a facility not built for children.

DOORS NAILED SHUT — §6.1, §6.3, §6.3.A

No Ideological Screening
At no stage, ever.

No Nationality Quotas
Prohibited at every stage.

Liberty When Removal Fails
Unexecutable removal means release, not detention (§6.3.a).

No §1.6 Discrimination in Sponsorship
Equality reaches sponsorship criteria, and a discriminatory denial can be challenged in court.

NUMBERS WORTH REMEMBERING

2 gates to residency — **sponsorship + federal certification**. Asylum uses neither.

72 hours to appoint a federal guardian for an **unaccompanied minor** (§6.3).

0 days of detention for a person whose removal cannot be executed — they remain at liberty (§6.3.a).

1 ground on which a State sponsorship denial can be challenged in court — §1.6 discrimination (§6.2).

A theoretical constitutional design project — not the law of any existing nation.